

3. **No trust raised where there is uncertainty.**—But precatory words will be held to express a wish only, and not a command, if it be impracticable for the Court to deal with it as a trust; as if a testator devise a house to his wife and express a wish that his sister should live with her, for here no interest in the house is given to the sister, and how can the Court compel the widow and sister to live together (*c*)? and the like construction will prevail where either the objects intended to be benefited are imperfectly described (*d*), or the amount of the property to which the trust should attach is not sufficiently defined (*e*); for the difficulty that would attend the execution of such imperfect trusts is converted by the Court into an argument that no trust was really intended (*f*). The rule as laid down by Lord Alvanley, and since recognized as the correct principle, is, that a trust is created in those cases only “where a testator points out *the objects, the property, and the way in which it shall go*” (*g*).

4. **Secus. Where the uncertainty arises from want of evidence.**—But although uncertainty in the object will unquestionably furnish a reason for holding no trust to have been intended by precatory words, it will be otherwise where the

(*c*) *Graves v. Graves*, 13 Ir. Ch. Rep. 182; and see *Hood v. Oglander*, 34 Beav. 513.

(*d*) *Harland v. Trigg*, 1 B. C. C. 142; *Tibbits v. Tibbits*, 19 Ves. 604, *per* Lord Eldon; *Richardson v. Chapman*, 1 Burn's Eccles. Law, 245; *Pier-son v. Garnet*, 2 B. C. C. 45, *per* Lord Kenyon; S. C. id. 230, *per* Lord Thurlow; *Knight v. Knight*, 3 Beav. 173, *per* Lord Langdale; *Sale v. Moore*, 1 Sim. 534; *Cary v. Cary*, 2 Sch. & Lef. 189, *per* Lord Redesdale; *Meredith v. Heneage*, 1 Sim. 542, see 558, 559, 565; *Ex parte Payne*, 2 Y. & C. 636; *Reid v. Atkinson*, 5 I. R. Eq. 162, 373.

(*e*) *Lechmere v. Lavie*, 2 M. & K. 197; *Knight v. Knight*, 3 Beav. 148; *Meredith v. Heneage*, 1 Sim. 556; *Buggins v. Yates*, 9 Mod. 122; *Sale v. Moore*, 1 Sim. 534; *Anon. Case*, 8

Vin. 72; *Tibbits v. Tibbits*, 19 Ves. 604, *per* Lord Eldon; *Wynne v. Hawkins*, 1 B. C. C. 179; *Pier-son v. Garnet*, 2 B. C. C. 45, *per* Lord Kenyon; S. C. ib. 230, *per* Lord Thurlow; *Bland v. Bland*, 2 Cox, 349; *Le Maitre v. Bannister*, cited in note to *Eales v. England*, Pr. Ch. 200; *Sprange v. Barnard*, 2 B. C. C. 585; *Pushman v. Filliter*, 3 Ves. 7; *Attorney-General v. Hall*, Fitzg. 314; *Wilson v. Major*, 11 Ves. 205; *Eade v. Eade*, 5 Mad. 118; *Curtis v. Rippon*, 5 Mad. 434, *Russell v. Jackson*, 10 Hare, 213.

(*f*) *Morice v. Bishop of Durham*, 10 Ves. 536, *per* Lord Eldon.

(*g*) *Malin v. Keighley*, 2 Ves. jun. 335. See *Knight v. Boughton*, 11 Cl. & Fin. 548, 551; *Briggs v. Penny*, 3 Mac. & G. 546; *Greene v. Greene*, 3 I. R. Eq. 631; [*Stead v. Mellor*, 5 Ch. D. 225.]